

Rustam Sahi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 August 2016 · Writ - C No. 39802 of 2016 · Writ - C No. 39802 of 2016 · **Writ disposed; objections to be examined at final assessment under clause 6.8.**

HEADNOTE

After a surprise inspection found the petitioner in theft of electricity, and after he paid for compounding of the criminal offences, he sought a writ directing decision of his objection. Held, provisional assessment following such inspection is under Clause 6.8 of the Electricity Supply Code, 2005; the consumer may object under the same clause. If an objection is before the competent authority, all issues shall be examined while making the final assessment. Petition disposed of on that direction.

FACTUAL SUMMARY

A surprise inspection of the petitioner's premises on 30 June 2016 found him involved in theft of electricity. To avoid arrest he paid Rs 1,40,000 towards compounding of the criminal offences. He then filed this writ petition seeking a direction that the respondents decide his objection or representation. He did not ask the Court to quash the assessment on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

provisional assessment and objection after theft inspection

HOLDING

Where theft of electricity is found on a surprise inspection, provisional assessment is made under Clause 6.8 of the Electricity Supply Code, 2005, and the consumer may object under the same clause. If the consumer has raised an objection before the competent authority, that authority shall examine all issues while making the final assessment. The writ was disposed of with that direction and without deciding the objection on the merits. ¶ 1

FLAG wrong_clause: Clause 6.8 (UUE) applied to theft; theft assessment is 8.1-8.2

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion After a surprise inspection found the petitioner in theft of electricity, and after he paid for compounding of the criminal offences, he sought a writ directing decision of his objection.. ¶ 1

s135-arrest-safeguards-and-compounding-remedy After a surprise inspection found the petitioner in theft of electricity, and after he paid for compounding of the criminal offences, he sought a writ directing decision of his objection.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT AND OF THE PETITIONER'S OBJECTION

left to the competent authority at final assessment under Clause 6.8 ¶ 1